

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER OCCURRED ON
THE ACTUAL DOCKET — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

Leora Benton v. Blue Cedar Compliance, Inc.

No. SYN-CA4-26-CV-4101-CF-NEVER-OCCURRED

Counterfactual Shortened Mandate

Basis and date of issuance

Issued June 22, 2026.

The court entered its opinion and judgment on June 15. On June 18, Benton and Blue Cedar jointly requested a shortened mandate period, represented that neither would seek rehearing or a stay, and asked for prompt return of the remanded claim. The court granted that motion on June 22 and authorized issuance the same day. The clerk has entered the required release, and no contrary order appears on the docket.

The mandate is therefore issued on June 22, 2026 under the court's express shortening order. Its date does not depend on expiration of the ordinary fourteen-day rehearing period or the later no-petition calculation. It reflects the parties' joint request and the court's good-cause determination. The shortening affects only timing; the opinion and judgment transmitted to the district court retain their original terms and legal effect.

Counterfactual Shortened Mandate

Disposition transmitted

The district court's December 1, 2025 order narrowly excluding the materially new subject in Tessa Wynn's late declaration under Rules 26 and 37 is AFFIRMED. The December 19 summary judgment entered for Blue Cedar Compliance, Inc. on Leora Benton's Title VII retaliation claim is VACATED. That claim is REMANDED to the United States District Court for the Eastern District of Virginia for further proceedings consistent with the June 15 opinion.

Nothing in this mandate establishes liability, determines witness credibility, or admits the excluded declaration subject. The district court may manage the returned action within the appellate disposition and governing law. The clerk shall transmit certified copies of this mandate, the opinion, the judgment, the joint motion, the shortening order, and the release order to the district clerk. Counsel for Benton and Blue Cedar shall receive electronic notice that mandate issued on the shortened date.